

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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NATASHA SUMERSET,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
GABRIEL GONZALEZ (Tax Reg. # 960602), NYPD
OFFICER JOSEPH BASIRICO (Tax Reg. # 959480)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
Queens County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 24, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.

40 Exchange Place

Suite 1000

New York, New York 10005

(774) 218-3461

sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER GABRIEL GONZALEZ (Tax Reg. # 960602), 114th Precinct, 34-16 Astoria
Boulevard, Queens, NY 11103-4425

NYPD OFFICER JOSEPH BASIRICO (Tax Reg. # 959480), 114th Precinct, 34-16 Astoria Boulevard,
Queens, NY 11103-4425

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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NATASHA SUMERSET,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
GABRIEL GONZALEZ (Tax Reg. # 960602), NYPD
OFFICER JOSEPH BASIRICO (Tax Reg. # 959480)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

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Plaintiff **Natasha Sumerset**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully assaulted, stopped, searched, and arrested by the defendants. Plaintiff was deprived of her federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected her to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory

and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER GABRIEL GONZALEZ, assigned Tax Reg. # 960602, who is employed with the 114th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER GABRIEL GONZALEZ (Tax Reg. # 960602) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER JOSEPH BASIRICO, assigned Tax Reg. # 959480, who is employed with the 114th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER JOSEPH BASIRICO (Tax Reg. # 959480) is being sued in his individual capacity and official capacity.
8. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
10. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h) hearing examination of Plaintiff on April 20, 2021.

STATEMENT OF FACTS

17. On January 27, 2021 at approximately 5:30 a.m. in front of 306 8th Street and Astoria Boulevard, in Queens County, New York, numerous police officers from the 114th Precinct, and other

unknown police commands, including upon information and belief, defendant NYPD Officers Gabriel Gonzalez (Tax Reg. # 960602) and Joseph Basirico (Tax Reg. # 959480), and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

18. On January 27, 2021 at approximately 5:30 a.m., Plaintiff was asleep inside of her apartment when she received a call from her son, who informed her that he was being chased by defendant NYPD Officers, and was approaching their apartment building at 306 8th Street in Queens, New York. Plaintiff immediately got out of bed and left her apartment, heading out to the front of the building.
19. Upon exiting her building, Plaintiff immediately saw her son, approximately two feet from the entrance of the building being assaulted by numerous police officers. Plaintiff's son was surrounded by approximately nine defendant NYPD Officers who were punching, kicking, choking, and tasing him.
20. Seeing her son in obvious distress, and his life in jeopardy from the relentless attack while laying on the ground, Plaintiff approached the defendant NYPD Officers, informed them that the person they were assaulting was her son, and yelled at them to stop their assault. In response to this, one defendant NYPD Officer pushed Plaintiff back and told her to, in sum and substance "get the fuck back."
21. Despite being assaulted by a defendant NYPD Officer, Plaintiff continued to verbally advocate that the defendant NYPD Officers stop assaulting her son, exclaiming to them that he was not resisting arrest, he was lying prone on the ground, and was unarmed.
22. In response to her further protestations, a different defendant NYPD officer, this one approximately a foot taller than Plaintiff, pushed Plaintiff, knocking her to the ground. The

defendant NYPD Officer then put a knee on her back and pinned her to the ground, causing Plaintiff to have extreme difficulty breathing for approximately five minutes. The defendant NYPD Officer then placed Plaintiff in handcuffs, placing her under arrest without probable cause or reasonable suspicion that she had committed any crime or offense. As a result of being knocked and pinned to the ground, Plaintiff suffered cuts, bruises, and bleeding to her hands and arms.

23. The defendant NYPD Officer pinning Plaintiff to the ground with his knee was replaced by another officer who proceeded to conduct an illegal search of Plaintiff. Plaintiff was then taken to the 114th Precinct.
24. Plaintiff was detained at the 114th Precinct for approximately 16 hours, at which point she was taken to Queens Central Booking.
25. Plaintiff was detained at Queens Central Booking for approximately 21 more hours.
26. During her confinement at the 114th Precinct and Queens Central Booking, respectively, Plaintiff was subjected to depraved, filthy and inhumane conditions.
27. While plaintiff was incarcerated at the 114th Precinct and Queens Central Booking, defendants falsely and maliciously told the Queens County District Attorney's Office that Plaintiff had committed the crimes of Obstructing Governmental Administration in the Second Degree and Resisting Arrest. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
28. Plaintiff was released on her own recognizance at her arraignment on January 28, 2021. Plaintiff denied then, as she does now, that she committed any acts of Obstructing Governmental Administration, that she in any way ever resisted arrest, or committed any other offenses prior to

her arrest. She made approximately two additional court appearances after her arraignment before her case was dismissed and sealed on May 14, 2021.

29. As a direct result of Plaintiff's false arrest and malicious prosecution she was illegally detained for approximately 39 hours. In addition to the aforementioned cuts, scrapes, and bruises to her hands and arms, Plaintiff continued to feel pain in her left wrist after she was released from custody as a result of the extremely tight placement of handcuffs on her wrist by defendant NYPD officers. She sought medical attention on January 29, 2021, the day after her arraignment, at Mount Sinai Queens Hospital. X-rays were taken, and she was diagnosed with a sprained ligament, and had her wrist wrapped in a bandage. Even now, more than ten months after she was assaulted and arrested by defendant NYPD officers, she continues to have numbness in three fingers on her left hand as a result of her injury, and she suffers lingering pain that requires the consistent use of a bandage as treatment.
30. In addition, Plaintiff was concerned that her violent and close interactions with defendant NYPD Officers put her at risk of contracting Covid-19. While receiving treatment at the hospital following her arraignment, Plaintiff was tested for Covid-f19. While she ultimately tested negative, the results took several days to return, and she was left in a heightened state of anxiety during the intervening period.

FIRST CAUSE OF ACTION

ASSAULT

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth herein. ^[L]_{SEP}
32. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent

ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by Defendant NYPD Officers Gabriel Gonzalez (Tax Reg. # 960602) and Joseph Basirico (Tax Reg. # 959480) and numerous P.O. John and Jane Does prior to her false and illegal arrest when said defendants swung their hands towards her before pushing her, and ultimately, knocking her to the ground.

33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. [L]
[SEP]
34. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. [L]
[SEP]

SECOND CAUSE OF ACTION

BATTERY

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth herein. [L]
[SEP]
36. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. Plaintiff was forcibly pushed twice, knocked to the ground, and then pinned to the ground by a Defendant NYPD Officer's knee for several minutes. These acts were committed without justification, and were committed by NYPD Officers Gabriel Gonzalez (Tax Reg. # 960602) and Joseph Basirico (Tax Reg. # 959480) and P.O. John and Jane Doe prior to her false and illegal arrest. [L]
[SEP]

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct. [REDACTED]
38. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 38 as if fully set forth herein.
40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
41. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

43. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the State of New York.
45. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused her a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
46. Defendants commenced and continued a criminal proceeding against Plaintiff.
47. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which she was prosecuted.
48. The prosecution and criminal proceedings terminated favorably to Plaintiff on May 14, 2021.
49. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate her state constitutional and tort rights.
50. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, battery, unlawful search and seizure, detention, and malicious prosecution.
55. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
56. As a result of the foregoing, Plaintiff was subjected to assault, battery, illegal arrest, search and undue force upon her person over the course of her false arrest.
57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
58. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants owed a duty of care to Plaintiff.
61. Defendants breached that duty of care by subjecting her to unjustified acts of assault, battery, illegal arrest and search and undue force and unprivileged deprivation of her liberty without sufficient or any cause to do so.

62. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
63. All of the foregoing occurred without any fault by Plaintiff.
64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

65. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
67. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
68. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. All of the aforementioned acts of defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
71. All of the aforementioned acts deprived Plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
73. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

75. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
77. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by pushing her to the ground on multiple occasions, pinning her to the ground by applying a bent knee in her back, and applying handcuffs in such an extreme manner as to sprain Plaintiff's wrist, all without justification.
78. In so doing, the conduct of NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
79. At the time that Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 detained Plaintiff, she was not resisting arrest or acting in a threatening or menacing manner. Plaintiff was not carrying or displaying weapons or any dangerous instruments. No orders were given by Police Officer Defendants to the Plaintiff to stop, remain in place, or otherwise act in a manner that failing to comply would in any way justify the use of physical force, let alone the extreme and outrageous physical contact Defendant Officers subjected Plaintiff to.
80. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries, her liberty was restricted for an extended period of time, she was

put in fear for her safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. As a result of the aforesaid conduct by defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO NYPD and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
83. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
85. Plaintiff was searched by defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.

86. As a result of the aforesaid conduct by defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
87. As a result of the foregoing, Plaintiff was deprived of her Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

SIXTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
89. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that she committed the crimes of resisting arrest and obstruction of governmental administration.
90. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff committed offenses constituted resisting arrest and obstructive governmental administration, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest her for said offenses.
91. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence

against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

92. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
93. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
95. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of assault, battery, false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
96. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when

they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

97. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

EIGHTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
99. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed any illegal acts, including resisting arrest and obstruction of governmental administration.
100. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
101. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
102. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

103. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
104. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
105. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
106. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
107. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
108. Defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
109. Specifically, defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.

110. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICERS GABRIEL GONZALEZ and JOSEPH BASIRICO and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on May 14, 2021.

111. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

112. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

113. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

114. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

115. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

116. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

117. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

118. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.

119. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff' constitutional rights.

120. The acts complained of deprived the Plaintiff of her right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, NATASHA SUMERSET, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
November 24, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER GABRIEL GONZALEZ (Tax Reg. # 960602), 114th Precinct, 34-16 Astoria
Boulevard, Queens, NY 11103-4425

NYPD OFFICER JOSEPH BASIRICO (Tax Reg. # 959480), 114th Precinct, 34-16 Astoria Boulevard,
Queens, NY 11103-4425

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
November 24, 2021

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.